Nemiraju vs Selva Kumar on 2 February, 2024

KABC030138152017

Presented on : 23-02-2017
Registered on : 23-02-2017
Decided on : 02-02-2024
Duration : 6 years, 11 months, 7 days

IN THE COURT OF THE XXXII ADDL., CHIEF
METROPOLITAN MAGISTRATE, AT BENGALURU
PRESENT:
SMT.LATHA .J, B.COM, LL.B.,
XXXII Addl.C.M.M,
Bengaluru.

Dated this the 02nd day of February 2024
C.C.No.6291/2017

Complainant: The State through
Police Sub Inspector,
Madivala PS, Bengaluru.
(By Asst. Public Prosecutor)

V/s

Accused SelvaKumar,
S/o R.Jaganatha,
Aged about 18 years,
R/at:Bharath Car garage,
Hosur main road, Garvebavi
palya,Bengaluru

(By Sri.T.S...Adv.,)

Date of commencement of offence	:	17.04.2015
Date of report of offence	:	17.04.2015

Arrest of the Accused	:	---
Name of the Informant	:	Nemi Raj- Police Inspector
Date of commencement of recording evidence	:	09.06.2023
Date of closing of evidence	:	09.06.2023
Offences complained of	:	U/S. 3 and 14 of Child

		Labour (Prohibition and Regulation) Act 1986
Opinion of the Judge	:	Accused is found not guilty.
Date of Judgment	:	02.02.2024

XXXII A.C.M.M.,
Bengaluru.

JUDGMENT

The Police Sub Inspector of Madivala P.S has submitted the Charge Sheet against the accused for the offences punishable U/Sec.3 and 14 of Child Labour (Prohibition and Regulation) Act 1986.

2. The brief facts of the Prosecution case are as follows:

> That, on receipt of credible information the C.W.1-Police Inspector -along with police staff i.e, C.W. 6 to 9 and panchas i.e, C.W.3 and 4 and C.W.5-Labour Inspector conducted raid on 17.04.2015 at 04.30 P.M, at Bharath Car Garage, Hosur Main road, Garvebavipalya, Bengaluru and found that the accused had engaged C.W.2-MadhanKumar, who is minor, aged 13 years to work as cleaner at the garage from 9.00A.M to 6.00P.M and he was given Rs.50/- per day as coolie. Thereby the accused has committed the offences punishable U/Sec.3 and 14 of Child Labour (Prohibition and Regulation) Act 1986.

3. On the basis of the Statement of CW1, the Madivala Police have registered a case under Crime No.702/2015 for the offences punishable U/Sec. 3 and 14 of Child Labour (Prohibition and Regulation) Act 1986 against the accused and submitted the FIR before the court. Thereafter the investigating officer visited the spot and drawn the spot mahazar and recorded the statement of witnesses on completion of the investigation, the Charge Sheet has been filed against the accused for the offences punishable U/Sec. 3 and 14 of Child Labour (Prohibition and Regulation) Act 1986. On the receipt of the police report, this court has taken cognizance for the said offences.

4. On the appearance of the accused, he was enlarged on bail. The copies of prosecution papers were furnished to the accused as contemplated U/Sec.207 of Cr.P.C. After hearing both the parties, the charge was framed against the accused for the offences punishable U/Sec. 3 and 14 of Child Labour (Prohibition and Regulation) Act 1986 and read over to him. Accused pleaded not guilty and claimed to be tried. Hence, the matter was posted for evidence.

5. In order to bring home the guilt of the accused, the prosecution has got examined 01 witness as PW1, out of the total charge sheet witnesses as CW1 to 11 and got marked documents as Ex.P1 and P.2. Inspite of sufficient issuance of summons and NBW to CW 2 to 11, these witnesses have not been secured. Hence the evidence of CW-2 to 11 is dropped as per order dated 08.12.2023.

6. After closure of prosecution evidence, the accused is examined U/s.313 of Cr.P.C. Each and every incriminating circumstances found in the evidence of the prosecution against the accused is separately read over to the accused. The accused denied all such circumstances as false. The accused did not choose to adduce defense evidence and no documents are got marked, on his behalf.

7. I have heard the arguments addressed by the learned Assistant Public Prosecutor and learned advocate for the accused.

8. On going through the facts and circumstances of the prosecution case, the following points would arise for my consideration:

POINTS

1. Whether the prosecution proves beyond all reasonable doubt that, on receipt of credible information the C.W.1-Police Inspector -

along with police staff i.e, C.W. 6 to 9 and panchas i.e, C.W.3 and 4 and C.W.5-Labour Inspector conducted raid on 17.04.2016 at 04.30 P.M, at Bharath Car Garage, Hosur Main road, Garvebavipalya, Bengaluru and found that the accused had engaged C.W.2-

years to work as cleaner at the garage from 9.00A.M to 6.00P.M for a coolie of Rs.50/- per day and thereby the accused has committed the offence punishable U/Sec.3 of Child Labour (Prohibition and Regulation) Act 1986 ?

2. Whether the prosecution proves beyond all reasonable doubt that on the same date, place and time, the accused had engaged C.W.2-MadhanKumar, who is minor and aged 13 years to work as cleaner at the garage and thereby the accused has committed the offence punishable U/Sec. 14 of Child Labour (Prohibition and Regulation) Act 1986 ?

3. What Order?

9. My findings to the above Points are as under:

Points No.1 and 2 : In the Negative.

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Point No.3        : As per final order,
                          For the following: -
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REASONS

10. Points No.1 and 2:- As these points are interlinked with each other and also similar evidence is led on all these points, I have taken all these points together for common discussion in order to avoid repetition of facts and discussion.

11. It is the allegation that the accused has committed the offences punishable U/Sec.3 and 14 of Child Labour (Prohibition and Regulation) Act 1986.

12. In order to prove its case, the prosecution has got examined the informant of crime by name Nemi Raj-Police Officer as P.W.1.

Out of the documents marked for the prosecution Ex.P1 is the report and Ex.P2 is the Mahazar.

13. C.W1/P.W.1-Sri. Nemiraj-Dy.S.P in his evidence deposed that while he working as Police Inspector at CID, AHTU on 17.04.2015 himself and the police staff were directed to go to Bharath car Garage, at Garvebavi palya as a child labor was employed in the said car garage and accordingly he called the BOSCO (NGo) staff to come to the said place and conducted raid in the presence of Dy.S.P along with the C.W.6, 7 and 8 and he further deposed that at the car garage he found the minor boy wiping the car and he took him to his custody and enquired regarding his name and other details and said Madhan Kumar(minor boy) told that he was working since one week at the garage, from 9.00A.M to 7.00 P.M, for a coolie/daily wage of Rs.50/- and he drew mahazar at the spot as per Ex.P.2. P.W1 further deposed that he took the minor boy and accused into his custody and handed over them to Madivala Police along with report as per Ex.P.1.

14. During cross examination made by the Learned Counsel for the accused, this witness deposed that he did not receive any order from the S.P. and he admitted that he had taken the panchas along with him. He admitted that Hosur Main Road is a busy road. He admitted that there are residential house and commercial establishments on both sides of the road and Bharath car garage is about 20 feet wide and he does not remember how many vehicles were inside the garage. Further P.W.1 deposed that there were 2-3 people in the garage and he does not remember the registration number of the car which C.W.2 was wiping, but admitted that the boy was wiping a Swift car. He deposed that he is unable to say what clothes the boy was wearing when they raided the car garage and he admitted that he has not recorded the mahazar proceedings. He deposed that he has produced photos at the police station to show the presence of the boy/C.W.2 at the garage.

He further deposed that the house of the boy is at a distance of 1km from the garage and he did not enquire the parents of the boy/C.W.2. He deposed that he has not given notice to C.W.5, further he deposed that he has not mentioned about taking the custody of accused in the complaint or mahazar. He admitted that he is seeing the accused for the 1 st time at the Court. He denied the suggestions that he has not gone to the garage and did not take the boy to his custody and he has concocted Ex.P.2 for the purpose of this case and for statistical purpose he has filed this case.

15. During trial the accused took up the defence of total denial of the case of the prosecution.

16. On careful perusal of the evidence placed on record, it is evident to note that except the P.W.1 no other witnesses have been examined by the prosecution.

17. Now the question which arises before the court is whether the evidence placed on record is sufficient to establish the case of the prosecution. PW1 is an interested witness and his evidence is to

be scrutinized carefully. After appreciating the evidence placed on record, it is clear that the evidence of PW1 is vague and not inspiring confidence to act upon in the absence of evidence of the C.W.2 and other material witnesses. At first the P.W.1 himself admitted in the cross examination that he is seeing the accused for the 1st time at the Court and again he deposed that he had seen the accused at the place of incident. This contradiction statement of the P.W.1 creates doubt in the mind of the court as to the truthworthiness of the evidence of P.W.1.

18, Further relying on the decision reported in 1999 Crl.L.J 19 (SC) (Sanspal Singh Vs State of Delhi)

-It is evident that public witnesses were available and could have been associated to witness the recovery. It would have been a different matter altogether, had there been No public witness available or none was willing to associate here as stated above, public witnesses were available but No explanation on these lines is forthcoming. Thus it would be unsafe to maintain conviction of the appellant for the offences charged"

> The above said decision is aptly applicable to the case on hand.
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> 19. The prosecution failed to secure C.W.2 and other independent and public witnesses at the place where the alleged incident took place. Non examination of these independent witness can also be fatal to the case of prosecution.
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> 20. Furthermore the decision reported in (2017)11 SCC 195- Yogesh Singh Vs Mahabeer Singh and others.. At para 16 Hon'ble Supreme Court observed as under:
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> "16. Another golden thread which runs through the web of the administration of justice in criminal cases is that if two views are possible on the evidence adduced in the case, one pointing to the guilt of the accused and the other to his innocence, the view which is favourable to the accused should be adopted"

The above said decision is aptly applicable to the case on hand.

21. Now on overall perusal of the evidence and prosecution witnesses it is evident that the C.W.2 who is said to have been engaged as cleaner at the garage of accused is not examined before court. Non examination of a prime witness/C.W.2 creates a lacuna to connect the evidence of P.W1 to the case of prosecution. The evidence of P.W.1 alone is not sufficient to hold the accused guilty.

22. Inspite of sufficient issuance of summons, NBW and proclamation to CW 2 to 11, these witnesses have not been secured. Hence the evidence of CW-2 to 11 is dropped as per order dated 08.12.2023.

23. For the reasons stated above, it is clear that number of serious doubts arises in the mind of the court as to the evidence and circumstances of the case on hand. Under these circumstances, no doubt the accused is entitled for benefit of doubt. Hence this court held that the evidence placed on record is not pointing out towards guilt of the accused only and accused as a matter of right is entitled for benefit of doubt and prosecution failed to prove the guilt of the accused beyond all

reasonable doubt. Under these facts and circumstances of the case, the above Points No.1 and 2 is answered in the 'NEGATIVE'.

24. Point No.3: - In view of the findings of Point Nos.1 and 2, this court proceed to pass the following:

> ORDER Acting U/Sec.248(1) of Cr.P.C. accused is acquitted of the offences punishable U/Sec.3 and 14 of Child Labour (Prohibition and Regulation) Act 1986. Bail bonds of the accused shall stand canceled.
>
> The bail bond executed Sec.437(A) of Cr.P.C., shall be continued.
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> (Judgment typed to my online dictation by the Stenographer, typed copy corrected and signed by me, then pronounced by me in the Open Court on this the 02nd day of February 2024).
>
> (Latha J) XXXII A.C.M.M, Bengaluru.
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> ANNEXURE List of the Witnesses examined by the Prosecution:
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> PW-1 Nemi Raj C.W.1 09.06.2023 List of the Documents exhibited for the Prosecution:

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Ex.P1              :   Report
Ex.P1(a)           :   Signature of PW-1
Ex.P2              :   Spot Mahazar
Ex.P2(a)           :   Signature of PW-1
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> List of the MOs marked on behalf of the Prosecution
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> --NIL--
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> List of the Witnesses examined for defence:
>
> --Nil--
>
> List of the Documents exhibited for defence:
>
> --Nil--
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> List of the MOs marked on behalf of Defence:
>
> --Nil--

Digitally signed by LATHA LATHA Date:

J

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(Latha J)
XXXII A.C.M.M,
Bengaluru.